

ALITO, J., dissenting

Marks rule intact. As long as that rule stands, it refutes the argument that *Apodaca* is not binding because a majority did not agree on a common rationale.

Finally, our three colleagues contend that treating *Apodaca* as a precedent would require the Court “to embrace a new and dubious proposition: that a single Justice writing only for himself has the authority to bind this Court to propositions it has already rejected.” *Ante*, at 102. This argument appears to weave together three separate questions relating to the precedential effect of decisions in which there is no majority opinion. I will therefore attempt to untangle these questions and address each in turn.

An initial question is whether, in a case where there is no opinion of the Court, the position taken by a single Justice in the majority can constitute the binding rule for which the decision stands. Under *Marks*, the clear answer to this question is yes. The logic of *Marks* applies equally no matter what the division of the Justices in the majority, and I am aware of no case holding that the *Marks* rule is inapplicable when the narrowest ground is supported by only one Justice. Certainly the lower courts have understood *Marks* to apply in that situation.¹⁴

The next question is whether the *Marks* rule applies any differently when the precedent that would be established by a fractured decision would overrule a prior precedent. Again, the logic of *Marks* dictates an affirmative answer, and I am aware of no case holding that the *Marks* rule applies

¹⁴ See *Grutter v. Bollinger*, 539 U.S. 306, 321 (2003) (discussing lower court’s treatment of Justice Powell’s opinion in *Regents of Univ. of Cal. v. Bakke*, 438 U.S. 265 (1978)); *Planned Parenthood of Southeastern Pa. v. Casey*, 947 F.2d 682, 694–698 (CA3 1991) (noting that “[t]he binding opinion from a splintered decision is as authoritative for lower courts as a nine-Justice opinion,” and concluding based on opinions of Justice O’Connor that the test for the constitutionality of abortion regulations is undue burden), *aff’d in part and rev’d in part*, 505 U.S. 833 (1992); *Blum v. Witco Chemical Corp.*, 888 F.2d 975, 981 (CA3 1989); see also *United States v. Duvall*, 705 F.3d 479, 483, n. 1 (CA4 2013) (Kavanaugh, J., for the court).